entered here by the District Court were "acquittals" in substance as well as form. The District Court plainly granted the Rule 29 (c) motion on the view that the Government had not proved facts constituting criminal contempt.[10] The court made only too clear its belief that the prosecution was "'the weakest [contempt case that] I've ever seen.'" 534 F. 2d, at 587. In entering the judgments of acquittal, the court also recorded its view that "'the Government has failed to prove the material allegations beyond a reasonable doubt'" and that "'defendant should be found "not guilty."'"

Thus, it is plain that the District Court in this case evaluated the Government's evidence and determined that it was legally insufficient to sustain a conviction. The Court of Appeals concluded that this determination of insufficiency of the evidence triggered double jeopardy protection.[11] The Government, however, disputes the constitutional significance of the District Court's action. It submits that only a verdict of acquittal formally returned by the jury should absolutely bar further proceedings and that "[o]nce the district court declared a mistrial and dismissed the jury, any double jeopardy bar to a second trial dissolved." Brief for United States 21. We cannot agree.

Of course, as the Government argues, in a jury trial the primary finders of fact are the jurors. Their overriding responsibility is to stand between the accused and a potentially arbitrary or abusive Government that is in command of the criminal sanction. For this reason, a trial judge is prohibited from entering a judgment of conviction or directing the jury to come forward with such a verdict, see *Sparf & Hansen* v. *United States*, 156 U. S. 51, 105 (1895); *Carpenters* v. *United*

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[10] Rule 29 (a) in terms authorizes a judgment of acquittal "if the evidence is insufficient to sustain a conviction of such offense or offenses."

[11] The only other Court of Appeals specifically to address this issue reached the same conclusion. *United States* v. *Suarez*, 505 F. 2d 166 (CA2 1974) (*per curiam*).